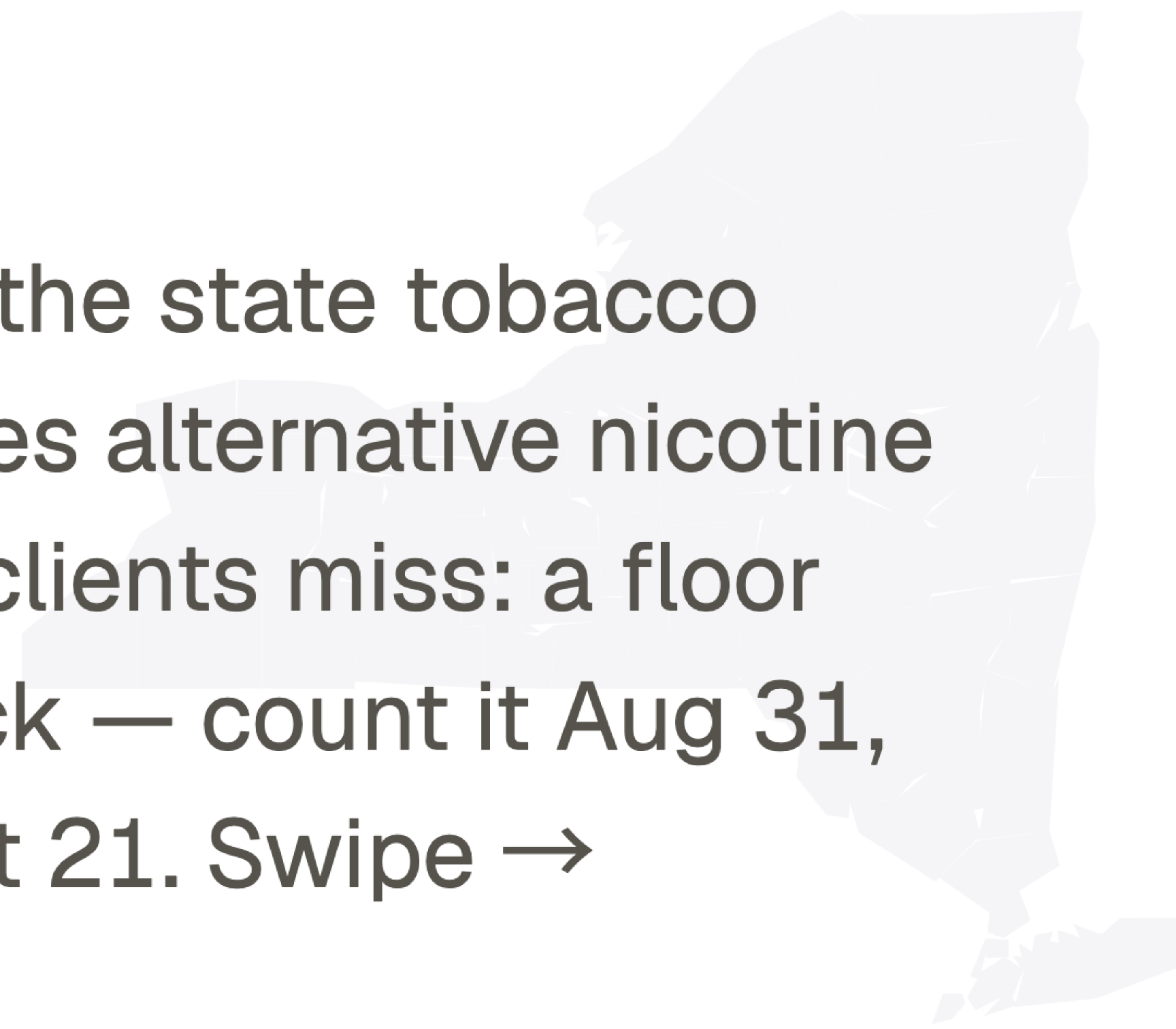


New York · Alternative nicotine products

New York taxes nicotine pouches at **75%**

From Sept 1, 2026 the state tobacco products tax reaches alternative nicotine products. The part clients miss: a floor tax on existing stock — count it Aug 31, file and pay by Sept 21. Swipe →



State

NYS Taxation and Finance

N-26-2 ✓

Alternative nicotine products · Brought into tobacco tax

Three dates to diary

Aug 31

do this first

Inventory all units, 11:59 pm EST

Sep 1

Tax starts 75% of wholesale

Licence required distributor/wholesale/retail

Sep 21

Floor tax file MT-200.5 and pay

Practitioner note

- 1** Alternative nicotine products are noncombustible products, other than vapor products, that contain nicotine but not tobacco and are intended for human consumption — nicotine pouches being the obvious case.
- 2** The rate is 75% of wholesale price, generally paid by the distributor. Wholesale and retail dealers are liable for the tax on units they hold if a distributor has not paid it.
- 3** Anyone importing or selling these products in New York must be licensed or registered as a tobacco products distributor, wholesale dealer or retail dealer before Sept 1, 2026.
- 4** The floor tax return is Form MT-200.5 — Schedule A for multiple locations, Schedule B for